

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2018

By: Pae

AS INTRODUCED

An Act relating to schools; amending 70 O.S. 2021, Section 1-116, as amended by Section 1, Chapter 281, O.S.L. 2024 (70 O.S. Supp. 2024, Section 1-116), which relates to definitions; adding definition for physical therapist; granting physical therapists the same benefits as certified teachers; adding definition for occupational therapist; granting occupational therapists the same benefits as certified teachers; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 1-116, as amended by Section 1, Chapter 281, O.S.L. 2024 (70 O.S. Supp. 2024, Section 1-116), is amended to read as follows:

Section 1-116. As used in this title:

1. "Teacher" means any person who is employed to serve as district superintendent, principal, supervisor, counselor, librarian, school nurse, athletic trainer, or classroom teacher or in any other instructional, supervisory or administrative capacity. The person shall not be deemed qualified unless the person holds a valid certificate issued by and in accordance with the rules of the

1 State Board of Education or the rules of the State Board of Career
2 and Technology Education, to perform the particular services for
3 which the person is employed;

4 2. "Superintendent" or "superintendent of schools" means the
5 executive officer of the board of education and the administrative
6 head of the school system of a district maintaining an accredited
7 school, provided the person holds an administrator's certificate
8 recognized by the State Board of Education;

9 3. "Principal" means any person other than a district
10 superintendent of schools having supervisory or administrative
11 authority over any school or school building having two or more
12 teachers. A teaching principal shall be a principal who devotes at
13 least one-half (1/2) the time school is in session to classroom
14 teaching. Teaching principals shall be required to hold
15 administrative certificates;

16 4. "Teachers" means, for purposes of complying with the State
17 Aid Law and other statutes, but not any other provision of law,
18 which apportion money on the basis of teaching units or the number
19 of teachers employed or qualified, all persons holding proper
20 certificates and connected in any capacity with the instruction of
21 pupils;

22 5. "Inductee" means any certified teacher who is employed in a
23 local school to serve as a classroom teacher under the guidance and
24 assistance of a mentor teacher or teachers;

1 6. "Student teacher" means any student who is enrolled in an
2 institution of higher learning approved by the State Board of
3 Education for teacher training and who is jointly assigned by the
4 institution of higher learning and a board of education of a school
5 district to perform practice teaching under the direction of a
6 regularly employed and certified teacher. A student teacher, while
7 serving an internship under the supervision of a certified teacher,
8 shall be accorded the same protection of the laws as that accorded
9 the certified teacher and shall be eligible to receive compensation
10 beginning on the first day of the internship for up to one full
11 school year; provided, however, that such compensation shall not be
12 considered compensation for purposes of teacher retirement or the
13 minimum salary schedule;

14 7. "School nurse" means a person employed full time by a board
15 of education who is a registered nurse licensed by the Oklahoma
16 State Board of Nurse Registration and Nursing Education and is
17 certified the same as a teacher by the State Board of Education.
18 Provided, that any person who is employed as a full-time school
19 nurse in any school district in Oklahoma who is not registered on
20 July 2, 1971, may continue to serve in the same capacity; however,
21 such person shall, under rules adopted by the State Board of
22 Education, attend classes in nursing and prepare to become
23 registered. A school nurse employed by a board of education shall
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1 be accorded the same protection of laws and all other benefits as a
2 certified teacher;

3 8. "Athletic trainer" means a person employed full time by a
4 board of education who is a Certified Athletic Trainer with current
5 certification from the Board of Certification of the National
6 Athletic Trainers' Association and is also currently licensed to
7 practice in the state in accordance with the State Board of Medical
8 Licensure and Supervision. An athletic trainer employed by a board
9 of education shall be accorded the same protection of laws and all
10 other benefits as a certified teacher;

11 9. "Physical therapist" means a person employed full time by a
12 board of education who is a Certified Physical Therapist or
13 Certified Physical Therapist Assistant with current certification
14 from the Federation of State Boards of Physical Therapy and is also
15 currently licensed to practice in the state in accordance with the
16 State Board of Medical Licensure and Supervision. A physical
17 therapist employed by a board of education shall be accorded the
18 same protection of laws and all other benefits as a certified
19 teacher;

20 10. "Occupational therapist" means a person employed full time
21 by a board of education who is a Certified Occupational Therapist or
22 Certified Occupational Therapist Assistant with current
23 certification from the National Board for Certification of
24 Occupational Therapy and is also currently licensed to practice in

1 the state in accordance with the State Board of Medical Licensure
2 and Supervision. An occupational therapist employed by a board of
3 education shall be accorded the same protection of laws and all
4 other benefits as a certified teacher; and

5 ~~9.~~ 11. "Support employee" means an employee who provides those
6 services which are not performed by certified teachers, principals,
7 superintendents or administrators and which are necessary for the
8 efficient and satisfactory functioning of a school district.

9 SECTION 2. This act shall become effective July 1, 2025.

10 SECTION 3. It being immediately necessary for the preservation
11 of the public peace, health or safety, an emergency is hereby
12 declared to exist, by reason whereof this act shall take effect and
13 be in full force from and after its passage and approval.

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